

MEMORANDUM

TO: MCLE Attendees, Office of the County Counsel, County of Sonoma
FROM: John A. Kelly
DATE: July 16, 2026
RE: Case Study: AI in a Traffic Court Matter (Four Demonstrations at the Smallest Scale)

MEMORANDUM

The other written materials for this program show AI applied to a large research problem: a comparative survey of civil local rules across all 58 California counties. This memorandum shows the same tools applied at the opposite end of the scale, a single red light camera citation, the smallest contested matter in the California court system. The matter is my own, so there is no client confidentiality concern in presenting it, and it has concluded: the court entered a not-guilty decision after trial by written declaration on June 30, 2026, with a full refund of bail. The underlying documents are attached as Exhibits A through D.

The case study is organized as four demonstrations, and each one uses a specific resource or prompt from this program's written materials. The point is not the ticket. It is that the grounding discipline the program teaches is the same at every scale, and that a matter most attorneys would resolve by writing a check can be defended thoroughly in a few hours of attorney time when each step is grounded in something a machine can check.

I. THE MATTER

The story begins, as many legal matters do not, with an opossum. The opossum climbed into the exhaust system of my daughter's car and died there, an act of self-determination that produced undrivable consequences, a repair bill, and a trip to a shop in Napa County. I picked the car up from the shop and drove it home to Sonoma. Somewhere along the way I made a right turn on a red light (after stopping, I maintained, and the court ultimately agreed) and an automated camera operated for the County of Napa recorded the event.

What Napa's automated enforcement system did next is the reason this case study exists. The system generates a photograph of the driver, and the photograph plainly shows a man driving. The system nonetheless mailed the citation to the registered owner of the vehicle: my former spouse, who is not a man, a fact the issuing agency had photographic evidence of and apparently did not consult. She was obliged to go in and contest a charge that its own evidence disproved on sight, and she executed an affidavit of nonliability under Vehicle Code section 40520 stating that she was not the driver. She did not identify who was. How Napa proceeded from "not her" to "therefore him" is established by nothing in the file, a gap that returns with some force in Demonstration Four. However the leap was made, the citation was reissued to me: a violation of Vehicle Code section

21453, subdivision (b), failure to stop before a right turn at a steady red signal, with \$301 in bail, announced by a Final Notice (Exhibit A) that managed to demand payment without ever stating the date of the violation it was demanding payment for. As a Sonoma lawyer facing the machinery of Napa County justice, I confess the ensuing analysis was undertaken with more relish than a \$301 exposure strictly required.

The strategic question was the standard one: pay, appear, or contest by trial by written declaration under Vehicle Code section 40902. What follows is how the tools answered it.

II. DEMONSTRATION ONE: THE ENTIRE VEHICLE CODE, LOCALLY, IN THE HARNESS

The first resource in the program materials is the California codes repository, the complete text of all twenty-nine California codes in machine-readable form, synced nightly from the Legislature's own bulk data:

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https://github.com/johnakelly-yahoo-com/california-codes
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The Vehicle Code from that repository was placed in the working folder, and the model was directed to answer only from it, using the document-grounded prompt from the Curated Prompts memorandum:

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Use only the attached [document, code section, or file] to answer. Quote the exact language you rely on, with its location (section, page, or line). If the attached material does not contain the answer, say "Not found in the provided source." Do not use outside knowledge or training data.
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Grounding mattered immediately, for a reason worth pausing on. Senate Bill 720 (Stats. 2025, ch. 782) added Vehicle Code section 21455.9 effective January 1, 2026, creating a new civil penalty framework for automated enforcement with a \$100 cap on first offenses and no DMV points. A model relying on its training data would likely have missed or garbled a statute that new. Working from the current statutory text, the analysis correctly distinguished the two frameworks, confirmed that this citation, with \$301 bail and Superior Court processing, was proceeding under the older court-based framework of section 21455.5, and then extracted every operational requirement that framework imposes on the enforcing agency: the 15-day mailing rule (§ 40518, subd. (a)), signage within 200 feet (§ 21455.5, subd. (a)(1)), right-turn screening guidelines (§ 21455.5, subd. (c)(1)), calibration and inspection (§ 21455.5, subd. (c)(2)), yellow-light timing per the California MUTCD (§ 21455.7), individual law enforcement review of each citation (§ 21455.5, subd. (c)(2)(F)), the pre-contract public hearing (§ 21455.6, subd. (a)), and the ban on per-citation vendor compensation (§ 21455.5, subd. (h)(1)). Every one of those became a challenge ground in the strategy memorandum (Exhibit B), and each quoted the statutory language with its location, because the prompt required it.

The right-turn screening requirement deserves a special mention in this case. The Legislature specifically directed agencies to develop screening guidelines that account for the lower risk of

right turns on red, precisely because camera systems mass-produce marginal right-turn citations. A screening process that mails a photograph of a man to a woman and lets the case proceed from there invites a certain skepticism about how much screening is occurring, and the memorandum said so in more diplomatic terms.

III. DEMONSTRATION TWO: NAPA COUNTY PROCEDURE FROM THE LOCAL RULES REPOSITORY

The second resource is the county local rules repository, all fifty-eight counties, in a structure suited to AI retrieval:

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https://github.com/johnakelly-yahoo-com/california-local-rules
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The citation was a Napa County matter, and I practice in Sonoma, where our familiarity with Napa's procedures is roughly proportional to our enthusiasm for them. Rather than working from assumptions about how the neighboring court processes traffic matters, Napa County's local rules were pulled from the repository and loaded as a source, with the same document-grounded prompt directing the model to answer only from them. That grounding, combined with the court's own posted traffic procedures, framed the practical questions that decide whether a written-declaration defense actually gets filed correctly: how the court takes traffic filings, what had to accompany the request (the \$301 bail deposit), and where the papers physically go, which in this case meant the traffic clerk's window at 1111 Third Street in Napa. The signed request (part of Exhibit C) was delivered through an e-filing concierge service with AI-drafted clerk instructions, which is a convenience worth one sentence; the local-rules grounding that made the filing correct is the demonstration.

IV. DEMONSTRATION THREE: AUTHENTICATING THE AUTHORITIES IN WESTLAW

The memoranda in the defense file cited case law as well as statutes, principally *People v. Goldsmith* (2014) 59 Cal.4th 258, the California Supreme Court's decision on the admissibility of automated enforcement photographs. Citations in AI-assisted work product are verified, not trusted, and the Curated Prompts memorandum supplies the workflow. The citation-checking prompt extracts every case cited in a document and builds a Westlaw citation-field search:

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CI("59 Cal.4th 258")
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The companion statute prompt builds the parallel search for the statutory citations, semicolon-separated for the annotated California database:

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CA VEH § 21453; CA VEH § 21455.5; CA VEH § 21455.7; CA VEH § 40518;  
CA VEH § 40520; CA VEH § 40902
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The searches were run in a Westlaw session, the result counts were checked against the number of authorities cited, and the opinions and code sections were downloaded as single-column PDFs. The downloaded text then served two purposes. It authenticated what the memoranda cited: each

citation matched the official reporter citation, and each pinpoint supported its proposition. And it became part of the closed corpus the drafts were checked against. This is the step that replaces “the AI said so” with “the authority is in the file.”

V. DEMONSTRATION FOUR: GROUNDING IN THE CHARGING DOCUMENTS

The final demonstration is the one that won the case, and it is the discipline most directly transferable to daily practice: grounding the AI in the actual documents from the court. The file, consisting of the Final Notice (Exhibit A), the filed request for trial by written declaration, and the court-prepared TR-205 form, was loaded as the only source, and the model was asked what the file established and what it did not, against the statutory checklist from Demonstration One.

The answer was: remarkably little. No document in the file stated the date of the underlying violation. The People were demanding \$301 for an event they declined to place in time, which made compliance with the 15-day mailing requirement unverifiable by design. The Final Notice provided only the court’s own contact information and invited questions to the court’s own phone number, despite section 40518, subdivision (b)(2), requiring the issuing agency’s contact information and a description of how to view and discuss the evidence with that agency; the notice never identified the issuing agency at all. Nothing in the file supplied the basis on which the registered owner’s “I was not driving” became “the driver was John Kelly,” the leap described in Part I. And the file managed to render the defendant under three different names: “John Kelly” on the charging documents, “JOHN A. KELLY” on the pleading, and “John Alexander Kelly” on the court’s own trial form, a full legal name that appeared nowhere in anything previously filed or served. Each finding was tied to a specific document and a specific statutory requirement, quoted language with location, which is what makes this kind of AI review verifiable rather than speculative. The findings went into the Declaration of Facts filed with the TR-205 (Exhibit C), along with a Public Records Act request and a section 21455.5, subdivision (g), evidence inspection demand generated the same way.

VI. THE DIVISION OF LABOR AND THE OUTCOME

It is worth being precise about what the tools did and what the attorney did, because that division is the substance of the ethical obligations this program covers. The AI read the statutes and local rules from the repositories, drafted both memoranda, built the Westlaw searches, reviewed the file against the statutory checklist, drafted every document, and filled the Judicial Council TR-205 form programmatically. The attorney supplied the facts, ran the Westlaw session and verified every authority against the downloaded text, made the strategic calls (contest rather than pay, written declaration rather than appearance, which deficiencies to lead with), and signed the filings. Nothing went out unverified.

The result was a defense of a \$301 citation that would have been economically irrational at ordinary drafting speed, produced in a few hours. And it worked. On June 30, 2026, the Napa Superior Court found the defendant not guilty on the written declarations and ordered the bail refunded in full (Exhibit D). The People’s exhibits were returned to the Napa Police Department, where the photograph of a man may yet be reunited with its file on a woman. The opossum’s contribution is acknowledged posthumously.

VII. THE GOVERNMENT-SIDE FLIP

For this audience, the case study has a second reading, and it is the serious one. Every defense ground in Demonstration One is a compliance obligation of the public agency operating the system: the signage, the warning period, the safety finding, the screening guidelines, the calibration records, the officer review, the hearing, the vendor contract terms. Everything that made this citation vulnerable, from the missing violation date to the missing agency contact information to the driver identification resting on no stated basis, is a paper-trail failure that a county's own lawyers could have caught first. An office advising an agency that operates an automated enforcement program, or any program built on a statute with enumerated operational requirements, can run exactly the workflow described here from the other direction: ground the AI in the governing statute from the codes repository, have it build the compliance checklist with quoted language and locations, and audit the client agency's program against it before a defendant does. The same discipline that makes AI safe for a defendant's research makes it useful for preventive compliance review. And should the neighboring county to the east ever seek advice on its program, this office will be well equipped, though under no obligation, to provide it.

EXHIBITS

- Exhibit A. Final Notice, Superior Court of California, County of Napa (the charging document as received)
- Exhibit B. Memorandum to File: Challenge Strategy (the AI-drafted statutory analysis)
- Exhibit C. TR-205 Filing Packet: Request for Trial by Written Declaration and Declaration of Facts (as filed)
- Exhibit D. TR-215 Decision and Notice of Decision: Not Guilty, June 30, 2026 (bail refunded in full)



Superior Court of California
County of Napa
1111 THIRD STREET
NAPA CA 94559-3001

C.9011

RETURN SERVICE REQUESTED

FINAL NOTICE

Please disregard this notice if you have already resolved your ticket.

PERSONAL AND CONFIDENTIAL

219

John Kelly
617 BROADWAY UNIT 1637
SONOMA CA 95476-2419



Superior Court of California, County of Napa
Criminal Courthouse
1111 Third Street
Napa, CA 94559-3001
(707) 299-1160
www.napa.courts.ca.gov

Case # 26TR005843

Citation #: NQ1014371

A ticket was issued to you for the following charges and you have failed to pay or appear by 4/24/2026:

Charge	Charge Description
VC21453(B)	RED SIGNAL - STOP BEFORE TURN

The information on the front and back of this notice contains the options available to resolve your ticket. Please contact the court if you have any questions. **(707) 299-1160**

Pay Your Ticket:

This is your final notice to pay the full amount of \$301.00 by 5/21/2026.

Payments can be made:

- Online by visiting www.napa.courts.ca.gov
- By mail 1111 Third Street, Napa, CA 94559-3001 (cash not accepted by mail)
- In person Monday through Friday 8:00AM to 4:00PM (excluding holidays)



Case # 26TR005843
Case Name John Kelly

Citation #: NQ1014371

Requesting a Trial:

If you would like to request a trial to contest your ticket, choose one of the following and return this notice and payment to the court by mail or in person:

☐ **TRIAL BY WRITTEN DECLARATION (Trial in Writing)**

I wish to request a Trial by Written Declaration and I am enclosing the full amount of \$301.00 by 5/21/2026. I understand that I will receive a packet from the court with further instructions that must be filled out and returned to the court by the date indicated in the packet.

X _____ Date: _____ Phone #: _____
Signature - I wish to request a Trial by Written Declaration.

☐ **IN-PERSON COURT TRIAL**

I wish to request an in-person court trial and I am enclosing the full amount of \$301.00 to the court by 5/21/2026. I understand that once my request is processed, I will receive a notice from the court of the date and time to appear in court. The issuing officer will also be notified. I acknowledge that the court trial date may be set beyond 45 days from the date of my signature below. Upon completion of the trial, depending on the outcome, my payment will either be refunded or applied to the fine.

X _____ Date: _____ Phone #: _____
Signature - I plead not guilty, waive time, and request a court trial.

IN-PERSON COURT TRIAL WITHOUT POSTING BAIL (CA Rule of Court 4.105)

If you wish to request an in-person court trial without submitting payment in advance, contact the court by 5/21/2026.

If you cannot afford to pay the required fines and fees in full, you may access the online system at Mycitations.courts.ca.gov to:	<u>Before Using the MyCitations Tool</u> You must contact the Court directly at 707-299-1160 if you:
▪ Request a reduction to your ticket	▪ Wish to contest the citation
▪ Request a payment plan	▪ Wish to attend traffic school
▪ Request Community Service	▪ Have an offense that is a misdemeanor violation
▪ Request more time to pay your ticket	▪ Have proof of correction and would like a dismissal or reduction of the charges

FAILURE TO ACT ON OR BEFORE 5/21/2026, OR FAILING TO APPEAR FOR A SCHEDULED COURT DATE, MAY RESULT IN ONE OR MORE OF THE FOLLOWING:

1. Referral to a collection agency and up to a \$100.00 civil assessment fee imposed (Penal Code 1214.1 and Penal Code 853.7)
2. A civil judgment may be enforced by garnishing wages, intercepting tax refunds, placing property liens, or through other potential income sources as described in Penal Code 1463.007.

To pay by credit card, you can pay online at www.napa.courts.ca.gov or complete the following information and return this notice to:

1111 Third Street, Napa, CA 94559-3001

Credit Card number: _____

3 Digit code (location on back of card) _____ Expiration Date _____

Cardholder's Name (as printed on the card): _____

Cardholder's Address (billing address): _____

Telephone Number: _____ Fine Amount \$ _____

Today's Date: _____ Signature: _____



MEMORANDUM

TO: File
FROM: John A. Kelly
DATE: May 19, 2026
RE: Napa County Red Light Camera Ticket – Challenge Strategy (Case No. 26TR005843, Citation No. NQ1014371)

This memo analyzes the options for challenging a red light camera citation issued through the Napa County Superior Court. The citation charges a violation of Vehicle Code section 21453, subdivision (b), described as “RED SIGNAL – STOP BEFORE TURN,” with a total bail amount of \$301. The original appearance deadline was April 24, 2026, and the final notice sets a payment or action deadline of May 21, 2026. The vehicle cited was not mine; I was driving Siena’s car, returning it from a repair shop.

I. THE CHARGE AND FACTUAL BACKGROUND

Vehicle Code section 21453, subdivision (b), provides that “a driver, after stopping as required by subdivision (a), facing a steady circular red signal, may turn right” unless a sign prohibits the turn. (Veh. Code, § 21453, subd. (b).) The charge description, “RED SIGNAL – STOP BEFORE TURN,” indicates the camera system recorded what it interpreted as a failure to come to a complete stop before making a right turn on red.

I believe I did stop at the intersection. I was driving Siena’s car home from a repair and was not familiar with the vehicle or potentially with the intersection. Red light camera systems are sometimes triggered by rolling stops that, from the driver’s perspective, feel like a complete stop, or by crossing the limit line by a small margin during the stopping process.

II. THE AUTOMATED ENFORCEMENT FRAMEWORK

This citation was issued under the automated traffic enforcement system authorized by Vehicle Code section 21455.5. (See Veh. Code, § 40518, subd. (a) [providing for notices to appear based on violations “recorded by an automated traffic enforcement system pursuant to Section 21455.5”].) The \$301 bail amount and the Superior Court’s processing of the matter confirm that this citation is proceeding under the traditional court-based framework of section 21455.5 rather than the newer civil penalty framework of section 21455.9, which was added by Senate Bill 720 (Stats. 2025, Ch. 782) effective January 1, 2026, and which caps first-offense penalties at \$100 with no DMV points.

The distinction matters. Under section 21455.5, the full apparatus of the Vehicle Code’s procedural protections applies, including trial by written declaration under Vehicle Code section 40902 and the right to a trial de novo if dissatisfied with the result. (Veh. Code, § 40902, subd. (d).)

III. GROUNDS FOR CHALLENGE

Several potential grounds exist for contesting this citation, varying in strength.

A. Factual Defense: Complete Stop

The strongest ground is a straightforward factual defense: I stopped before turning right. The prosecution bears the burden of proving beyond a reasonable doubt that I failed to stop. (See Veh. Code, § 21453, subd. (b); *People v. Goldsmith* (2014) 59 Cal.4th 258 [172 Cal.Rptr.3d 473, 326 P.3d 239] [addressing admissibility of automated enforcement photographs].) The camera system generates photographic and video evidence, but photographs capture discrete moments and can be misleading. Before filing any declaration, I should exercise the right under Vehicle Code section 21455.5, subdivision (g), to “review the photographic evidence of the alleged violation,” and under section 40518, subdivision (b)(2)(A), to “view and discuss with the issuing agency” the evidence used to substantiate the violation. If the video shows a perceptible stop – even a brief one – the factual defense is strong.

B. Right-Turn-on-Red Screening Requirements

Vehicle Code section 21455.5, subdivision (c)(1), requires that governmental agencies operating automated enforcement systems “[d]evelop uniform guidelines for screening and issuing violations, including a violation for a prohibited right turn at a steady circular red signal, which shall take into account the relative risk to traffic and pedestrian safety posed by right turns on red compared to proceeding through the intersection against a red signal.” (Veh. Code, § 21455.5, subd. (c)(1).) The Legislature specifically required heightened screening for right-turn violations because they pose less safety risk than running a red light through an intersection. If the issuing agency has not developed or followed such guidelines, or if the violation was marginal, this provision supports a challenge.

C. Registered Owner and Identity Issues

I was driving Siena’s vehicle, not my own. The vehicle is registered to my former spouse, Gianna Ghilarducci Kelly. Under Vehicle Code section 40520, a notice to appear issued under section 40518 for an automated enforcement violation “shall contain, or be accompanied by, an affidavit of nonliability and information as to what constitutes nonliability.” (Veh. Code, § 40520, subd. (a).) This affidavit mechanism exists because the citation is initially issued to the registered owner based on the license plate. (See Veh. Code, § 40518, subd. (a).) The registered owner may then execute an affidavit of nonliability identifying the actual driver, at which point the agency issues a new notice to the identified driver. (Veh. Code, § 40520, subd. (c).)

The citation is now addressed to me. The original citation was sent to Gianna as the registered owner, and she defended it on the grounds that she was not the driver. She apparently executed an affidavit of nonliability or otherwise informed the court that she was not driving, which resulted in the citation being reissued to me. This is a proper procedural chain under section 40520, so a challenge on identity or service grounds is unlikely to succeed. The fact that the registered owner had to redirect the citation does, however, confirm that the system relies on license plate

identification and subsequent identification of the actual driver, which may bear on the quality of the photographic evidence identifying me.

D. Procedural and Technical Defenses

Several procedural requirements apply to automated enforcement citations, and noncompliance with any of them can support a challenge:

15-Day Mailing Requirement. Vehicle Code section 40518, subdivision (a), requires that the notice to appear be “delivered by mail within 15 days of the alleged violation.” If the original notice was mailed more than 15 days after the violation, the citation is subject to dismissal.

Signage Requirements. Vehicle Code section 21455.5, subdivision (a)(1), requires that signs be “posted within 200 feet of an intersection where a system is operating that clearly indicate the system’s presence and are visible to traffic approaching from all directions in which the automated traffic enforcement system is being utilized to issue citations.” The absence or inadequacy of such signs is a basis for dismissal.

Equipment Calibration and Inspection. The governmental agency must ensure that “the equipment is properly installed and calibrated, and is operating properly.” (Veh. Code, § 21455.5, subd. (c)(2)(C).) The agency must also ensure that equipment “is regularly inspected.” (Veh. Code, § 21455.5, subd. (c)(2)(B).) Records of calibration and inspection can be requested.

Yellow Light Timing. At intersections with automated enforcement, “the minimum yellow light change interval shall be established in accordance with the California Manual on Uniform Traffic Control Devices.” (Veh. Code, § 21455.7, subd. (a).) A yellow interval shorter than the MUTCD minimum for the posted speed is grounds for challenge.

Law Enforcement Review. The agency must maintain “controls necessary to ensure that only those citations that have been reviewed and approved by law enforcement are delivered to violators.” (Veh. Code, § 21455.5, subd. (c)(2)(F).) If the citation was not reviewed and approved by a law enforcement officer, it is deficient.

E. Contract and Vendor Issues

Vehicle Code section 21455.5, subdivision (h)(1), prohibits contracts between the governmental agency and the camera vendor that provide for “payment or compensation to the manufacturer or supplier based on the number of citations generated, or as a percentage of the revenue generated.” A per-ticket compensation arrangement taints the enforcement program and is grounds for challenge.

IV. RECOMMENDED STRATEGY

Step 1: Request Trial by Written Declaration – Immediately

The court's notice provides two options for contesting: trial by written declaration and in-person court trial. I recommend trial by written declaration for the following reasons:

First, Vehicle Code section 40902, subdivision (d), provides that “[i]f the defendant is dissatisfied with a decision of the court in a proceeding pursuant to this section, the defendant shall be granted a trial de novo.” This means I receive two opportunities to contest the citation. If the written declaration is unsuccessful, a full in-person trial follows with no additional risk.

Second, in a trial by written declaration, the citing officer (or the officer who reviewed and approved the citation) must submit a written declaration. In automated enforcement cases, officers sometimes fail to submit a timely declaration, resulting in dismissal.

Third, the written format allows for a careful, organized presentation of the factual defense and any procedural defenses that investigation reveals.

The deadline to act is May 21, 2026. I should sign the Trial by Written Declaration section of the final notice, enclose \$301 bail, and mail it to the court immediately, or deliver it in person. The court must receive it by the deadline.

Step 2: Review the Photographic and Video Evidence

Before preparing the written declaration, I should contact the issuing agency and exercise the right to review the photographic evidence under Vehicle Code section 21455.5, subdivision (g), and section 40518, subdivision (b)(2)(A). The video is the critical piece: if it shows any perceptible stop, the factual defense is strong. If it shows a clear rolling stop, the defense must focus more heavily on procedural grounds.

Step 3: Prepare the Written Declaration

The declaration should address:

1. A factual account of the stop and right turn, including that I was driving an unfamiliar vehicle (Siena's car, returning from repair) and believe I came to a complete stop.
2. Any procedural deficiencies identified through evidence review and investigation.
3. The heightened screening requirement for right-turn violations under section 21455.5, subdivision (c)(1), and whether the agency considered the lower safety risk.

Step 4: If Necessary, Request Trial De Novo

If the written declaration results in a guilty finding, I should promptly request a trial de novo under Vehicle Code section 40902, subdivision (d). At the trial de novo, the full rules of evidence apply, and the prosecution must present live testimony. In automated enforcement cases, this

often means the officer who reviewed the citation must appear and testify, which can result in dismissal if the officer is unavailable or the prosecution declines to proceed.

V. THE COURT TRIAL WITHOUT POSTING BAIL OPTION

The notice also references California Rules of Court, rule 4.105, which permits an in-person court trial without posting bail. This option is available by contacting the court before the May 21, 2026 deadline. If posting \$301 bail is a concern, this is an alternative, but trial by written declaration remains the preferred approach because it provides the trial de novo safety net.

VI. CONCLUSION

There are viable grounds to challenge this citation. The factual defense – that I stopped before turning – is the most direct ground, but it must be verified against the photographic and video evidence. The procedural requirements of sections 21455.5, 21455.7, 40518, and 40520 provide additional avenues. The most critical immediate step is to request a trial by written declaration and post bail before the May 21, 2026 deadline, which is two days from now.

NAME OF COURT: Napa Superior Court STREET ADDRESS: 1111 Third Street MAILING ADDRESS: 1111 Third Street CITY AND ZIP CODE: Napa, CA 94559 BRANCH NAME:	FOR COURT USE ONLY
PEOPLE OF THE STATE OF CALIFORNIA VS. DEFENDANT: John A. Kelly	
REQUEST FOR TRIAL BY WRITTEN DECLARATION (Vehicle Code, § 40902)	
TO BE FILLED OUT BY COURT CLERK	CITATION NUMBER: NQ1014371
A. DUE DATE (for receipt of this form and any unpaid bail) (<i>specify</i>):	CASE NUMBER: 26TR005843

B. Bail amount required: \$

C. Bail amount already deposited by defendant: \$

D. Date mailed or delivered by clerk:

E. Mail or deliver completed form, evidence, and mail to the Clerk of the (*specify*): Court at (*mailing address*):

REQUEST FOR TRIAL

1. I have reviewed the *Instructions to Defendant (Trial by Written Declaration)* (form TR-200).
2. I request to have a trial by written declaration.
3. The facts contained in the Declaration of Facts on the reverse are personally known to me and are true and correct.
4. I know that I have the right not to be compelled to be a witness against myself. I understand and agree that by making any statement, I am giving up and waiving that right and privilege.
5. EVIDENCE The following evidence supports my case and includes everything I want the court to consider in deciding my case:

a. ☐ photographs (<i>specify total number</i>): b. ☐ medical record c. ☐ registration documents d. ☐ inspection certificate	e. ☐ diagram f. ☐ car repair receipt g. ☐ insurance documents h. ☒ other (<i>specify</i>):
--	--

Written declaration of facts
in support of trial by written
declaration (attached).

(Declaration continued on reverse)

PEOPLE v. DEFENDANT (Name):

CASE NUMBER:

John A. Kelly

26TR005843

6. DECLARATION OF FACTS (Type or print only. State what happened and explain all the items of evidence you checked in item 5 on the reverse and tell how they support your case. You may add additional pages.)

(Name): John A. Kelly

(Current mailing address):

617 Broadway Unit 1637, Sonoma, CA 95476

STATEMENT OF FACTS (begin here):

Please see the attached Declaration of Facts in Support of Trial by Written Declaration, signed under penalty of perjury and incorporated herein by reference.

7. Number of pages attached: 8

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date: June 22, 2026

John A. Kelly

(TYPE OR PRINT NAME)



(SIGNATURE)

1 JOHN A. KELLY, ESQ. (SBN 225961)
617 BROADWAY UNIT 1637
2 SONOMA, CA 95476
TEL: (707) 935-6100
3 FAX: (707) 935-6181
EML: JOHN@LAW-KELLY.COM
4

Defendant In Propria Persona.
5
6
7

8 SUPERIOR COURT OF THE STATE OF CALIFORNIA
9 COUNTY OF NAPA
10

11 THE PEOPLE OF THE STATE
OF CALIFORNIA,

12 Plaintiff,

13 v.

14 JOHN A. KELLY,

15 Defendant.
16

Case No.: 26TR005843

DECLARATION OF FACTS IN
SUPPORT OF TRIAL BY
WRITTEN DECLARATION
(Veh. Code, § 40902)

17
18 I, John A. Kelly, declare as follows:
19

20 **I. INTRODUCTION AND PLEA**
21

22 I am the defendant in this matter and I appear in propria
23 persona. I make this declaration in support of my trial by
24 written declaration under Vehicle Code section 40902, on the
25 charge stated in Citation No. NQ1014371, which alleges a
26 violation of Vehicle Code section 21453, subdivision (b) (failure
27 to stop before a right turn on a steady red signal). I plead not
28 guilty. The facts stated below are personally known to me and are

1 true and correct, and I would so testify if called as a witness.
2 On May 20, 2026, I deposited bail in the full amount of \$301.00
3 with the court when I filed my Request for Trial by Written
4 Declaration. If I am found not guilty or the charge is dismissed,
5 that bail must be refunded. (Veh. Code, § 40902, subd. (b).)

6 7 **II. STATEMENT OF FACTS**

8
9 The citation arises from an automated red light enforcement
10 system operated by the Napa Police Department for the City of
11 Napa. On the date in question I was driving a vehicle registered
12 to Gianna Ghilarducci Kelly. I was returning that vehicle to her
13 after it had been serviced at a repair shop. The vehicle was not
14 my own, I was not familiar with it, and I was not familiar with
15 the intersection.

16
17 I came to a complete stop before turning right. I stopped,
18 checked for cross traffic and pedestrians, and only then
19 completed a right turn on the red signal, which is permitted
20 under Vehicle Code section 21453, subdivision (b). Automated
21 systems can register a careful stop as a violation based on the
22 position of the vehicle relative to the limit line during
23 braking, even where the driver has in fact come to a complete
24 stop. I did not run the red signal, and I did not turn without
25 stopping.

26 27 **III. THE PROSECUTION'S BURDEN OF FOUNDATION**

28

1 Before the photographs and video generated by the automated
2 system may be considered, the prosecution must lay the statutory
3 foundation that Vehicle Code section 21455.5 requires. The
4 records in my possession do not establish that foundation, and
5 several of the procedural prerequisites appear not to have been
6 met. I set out below the deficiencies that I ask the court to
7 weigh in deciding this matter. Each is a matter on which the
8 prosecution, not the defendant, bears the burden.

9
10 **IV. THE NOTICE DOES NOT SHOW TIMELY MAILING**
11

12 Vehicle Code section 40518, subdivision (a), requires that a
13 notice to appear based on an automated enforcement violation be
14 "delivered by mail within 15 days of the alleged violation," with
15 "a certificate of mailing obtained as evidence of service." No
16 document I have received states the date of the alleged
17 violation. Without that date, compliance with the 15-day
18 requirement cannot be confirmed.

19
20 Two notices issued in this case. The first went to the registered
21 owner, Gianna Ghilarducci Kelly. After she advised that she was
22 not the driver, a second notice was directed to me. The reissued
23 notice to me could not have been mailed within 15 days of the
24 violation, because the intervening steps, mailing the first
25 notice, the owner's response, and the agency's reissuance,
26 consume far more than 15 days. I ask the court to require the
27 prosecution to produce the violation date, the date of each
28 mailing, and the certificate of mailing.

1

2 **V. THE NOTICE OMITTS REQUIRED CONTENT**

3

4 Vehicle Code section 40518, subdivision (b)(2), requires the
5 notice to describe the methods by which the recipient "may view
6 and discuss with the issuing agency, both by telephone and in
7 person, the evidence used to substantiate the violation," and to
8 provide "the contact information of the issuing agency." The
9 Final Notice I received lists only the Superior Court's telephone
10 number and website. It does not identify the issuing agency, the
11 Napa Police Department, does not give that agency's contact
12 information, and does not describe how I may view and discuss the
13 evidence with that agency.

14

15 **VI. THE NONLIABILITY AND REISSUANCE PROCESS**

16

17 Vehicle Code section 40520, subdivision (a), requires that the
18 notice contain or be accompanied by an affidavit of nonliability
19 and information about its effect. I have not been provided the
20 original notice sent to the registered owner, the affidavit, or
21 the reissued notice said to have been directed to me. I ask the
22 court to require the prosecution to establish that a notice to
23 appear was properly issued and served on me in compliance with
24 sections 40518 and 40520, and to show the basis on which I was
25 identified as the driver.

26

27 **VII. AUTOMATED SYSTEM REQUIREMENTS NOT ESTABLISHED**

28

Vehicle Code section 21455.5 conditions the validity of an automated enforcement citation on a series of requirements. Nothing in my file establishes any of them:

(a) Signage. Signs identifying the system must be posted within 200 feet of the intersection and visible to traffic approaching from every enforced direction. (Veh. Code, § 21455.5, subd. (a)(1).) No evidence shows compliant signage at the cited intersection.

(b) Warning period. The agency must have issued only warnings for the first 30 days and made a public announcement before enforcement began. (Veh. Code, § 21455.5, subd. (b).) No evidence shows compliance as to this location.

(c) Right-turn screening. The agency must follow uniform guidelines that screen right-turn-on-red violations according to the lower safety risk they pose compared to proceeding straight through a red signal. (Veh. Code, § 21455.5, subd. (c)(1).) My citation is a right-turn-on-red citation. No evidence shows that the required heightened screening was applied.

(d) Safety finding. The agency must have adopted a finding of fact that the system is needed at this specific location for safety reasons. (Veh. Code, § 21455.5, subd. (c)(2)(A).) No such finding is in my file.

(e) Inspection and calibration. The equipment must be regularly

1 inspected and certified as properly installed, calibrated, and
2 operating correctly. (Veh. Code, § 21455.5, subd. (c)(2)(B),
3 (C).) No inspection or calibration records are in my file.

4
5 (f) Sign maintenance. The warning signs must be regularly
6 inspected and maintained. (Veh. Code, § 21455.5, subd.
7 (c)(2)(D).) No records are in my file.

8
9 (g) Signal timing oversight. The agency must oversee the
10 establishment and timing of signal phases. (Veh. Code, § 21455.5,
11 subd. (c)(2)(E).) No records are in my file.

12
13 (h) Law enforcement review. Only citations reviewed and approved
14 by law enforcement may be delivered. (Veh. Code, § 21455.5, subd.
15 (c)(2)(F).) No evidence shows that a peace officer reviewed and
16 approved this particular citation.

17
18 (i) Vendor compensation. The contract with the system vendor may
19 not base payment on the number of citations or a share of
20 revenue. (Veh. Code, § 21455.5, subd. (h)(1).) The vendor
21 contract is not in my file, and its terms should be established.

22 23 **VIII. YELLOW LIGHT TIMING**

24
25 The minimum yellow light change interval at an automated
26 enforcement intersection must be set in accordance with the
27 California Manual on Uniform Traffic Control Devices. (Veh. Code,
28 § 21455.7, subd. (a).) No evidence shows that the yellow interval

1 at the cited intersection met the required minimum for the
2 approach speed.

3 4 **IX. PUBLIC HEARING**

5
6 Before authorizing the system, the City Council was required to
7 conduct a public hearing on its proposed use. (Veh. Code, §
8 21455.6, subd. (a).) No record of that hearing as it pertains to
9 this system and location is in my file.

10 11 **X. NO ALTERATION OF JUDICIAL COUNCIL FORMS**

12
13 The vendor and the operating agency may not alter the notice to
14 appear or any other form approved by the Judicial Council, and a
15 citation based on a materially altered form may be dismissed.
16 (Veh. Code, § 40518, subd. (d).) To the extent any form used in
17 this case was altered from its approved version, that is a
18 further basis for dismissal.

19 20 **XI. NAME DISCREPANCY**

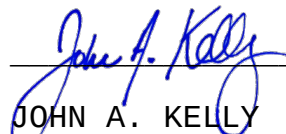
21
22 The charging documents name "John Kelly." The court's TR-205 form
23 names "John Alexander Kelly," a middle name that appears on no
24 document served on me or filed in this case. I note the
25 discrepancy to preserve the question of the records' accuracy.

26 27 **XII. CONCLUSION**

1 I did stop before turning right on the red signal. Beyond that,
2 the prosecution has not laid the foundation that Vehicle Code
3 section 21455.5 requires, and the notice process does not appear
4 to satisfy Vehicle Code sections 40518 and 40520. I respectfully
5 request that the court find me not guilty and order my bail
6 refunded. In the event of an adverse finding, I reserve my right
7 to a trial de novo under Vehicle Code section 40902, subdivision
8 (d).

9
10 I declare under penalty of perjury under the laws of the State of
11 California that the foregoing is true and correct.

12
13 Dated: June 22, 2026, at Sonoma, California.

14
15 
16

JOHN A. KELLY
Defendant In Propria Persona

NAME OF COURT: Napa Superior Court STREET ADDRESS: 1111 Third Street MAILING ADDRESS: 1111 Third Street CITY AND ZIP CODE: Napa, 94559	FOR COURT USE ONLY FILED JUL 09 2026 Clerk of the Napa Superior Court By: Deputy
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: John Alexander Kelly	
DECISION AND NOTICE OF DECISION (Trial by Written Declaration – Vehicle Code, § 40902)	
CITATION NUMBER: NQ1014371 CASE NUMBER: 26TR005843	

1. The court's decision was entered on: 6-30-2026
2. Bail amount: \$301.00
3. **THE COURT FINDS** the defendant:

a. Violation #1 VC21453(B)	☒	Not Guilty	☐	Guilty Fine: \$	☐	Dismiss Fee: \$
b. Violation #2	☐	Not Guilty	☐	Guilty Fine: \$	☐	Dismiss Fee: \$
c. Violation #3	☐	Not Guilty	☐	Guilty Fine: \$	☐	Dismiss Fee: \$
d. Violation #4	☐	Not Guilty	☐	Guilty Fine: \$	☐	Dismiss Fee: \$

THE COURT ORDERS

4. ☐ Defendant shall pay the following amount:
- | | |
|-------------------------------------|----|
| a. Total fines: | \$ |
| b. Total fees: | \$ |
| c. Total fines and fees (a plus b): | \$ |
| d. Credit for bail ordered applied: | \$ |
| e. TOTAL AMOUNT OWED (c minus d): | \$ |
- TO BE PAID BY:
5. ☒ Clerk shall refund to defendant the following amount:
- | | |
|--|---|
| a. Bail Amount: | \$ 301.00 |
| b. Subtraction of total fines (if any): | \$ 0 |
| c. Subtraction of total fees (if any): | \$ 0 |
| d. Total fines and fees to be subtracted (b plus c): | \$ 0 |
| e. TOTAL AMOUNT ORDERED REFUNDED (a minus d): | \$ 301.00 (should be received by mail within 60 days) |
6. Other orders (specify)

Date: 6-30-2026

JUDICIAL OFFICER

IF YOU WISH TO REQUEST A NEW TRIAL, YOU MUST SUBMIT A REQUEST FOR NEW TRIAL (TRIAL DE NOVO (FORM TR-220) WITHIN 20 DAYS OF THE DATE STATED IN ITEM 2 OF THE CLERK'S CERTIFICATE OF MAILING (see reverse).

FOR USE BY COURT CLERK: ☐ The evidence submitted by defendant is enclosed.

PEOPLE v. John Alexander Kelly

CASE NUMBER: 26TR005843

CLERK'S CERTIFICATE OF MAILING

1. I am not a party to this action.
2. I caused the *Decision and Notice of Decision* to be served by enclosing a copy in an envelope addressed as shown below and caused the envelope to be deposited with the United States Postal Service with first-class postage fully prepaid.

at Napa, California, on

JUL 09 2026

3. I certify that the foregoing is true and correct.

Dated:

Robert E Fleschman, Clerk by:

JUL 09 2026



, Deputy

DEFENDANT

John Alexander Kelly
617 Broadway
Unit 1637
Sonoma CA 95476

AGENCY

Gonzalez, David
Napa Police Department

☒ People's Exhibits Returned